



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY:
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SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 27TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 3, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 16
Series of 2026

**“AN ORDINANCE PROMOTING TRANSPARENCY AND ACCOUNTABILITY IN LOCAL FISCAL
ADMINISTRATION, SUBJECT TO NATIONAL LAWS AND REGULATIONS”**

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

EXPLANATORY NOTE

This Ordinance is designed to make local government financial information open and accessible to the public. It allows citizens to see how funds are budgeted, spent, and managed, while still protecting sensitive information as required by law. The purpose is to promote transparency, prevent misuse of funds and build public trust in local government operations.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the “TRANSPARENCY AND PUBLIC ACCESS TO FISCAL INFORMATION ORDINANCE.”

Section 2. DECLARATION OF POLICY- It is the policy of the Local Government to promote openness, accountability, and citizen participation in fiscal management. This Ordinance seeks to

ensure that the public has access to relevant fiscal information while respecting confidentiality and data protection requirements under national law.

Section 3. SCOPE AND COVERAGE- This Ordinance shall apply to:

1. All Offices of the local government.
2. All fiscal information related to revenues, expenditures, disbursements, budgets, and contracts.
3. All officials, employees and offices involved in the preparation, management, reporting, or dissemination of fiscal information.

Section 4. DEFINITION OF TERMS- For purposes of this Ordinance:

1. Fiscal Information- data, records and documents relating to Local Government revenues, budgets, expenditures, disbursements, contracts and financial statements.
2. Transparency- the principle that information shall be available and accessible to the public in a timely, understandable, and accurate manner.
3. Public Access- the right of citizens to request and obtain fiscal information subject to confidentiality and data protection laws.
4. Authorized Official- any official designated to manage, provide, or certify fiscal information

Section 5. PRINCIPLES GOVERNING TRANSPARENCY-

1. Accountability- Local Government Officials shall be responsible for the proper management and disclosure of fiscal information.
2. Timeliness- fiscal information shall be provided promptly upon request or according to a scheduled reporting calendar.
3. Accuracy- information provided shall be reliable, complete, and verifiable.
4. Accessibility- information shall be presented in formats understandable to the public, including printed, digital, or other appropriate means.
5. Compliance- disclosure of fiscal information shall adhere to national laws, regulations, and policies on transparency, data protection, and confidentiality.

Section 6. PUBLIC DISCLOSURE OF FISCAL INFORMATION- The Local Government shall arrange: the following fiscal information:

1. Annual and Supplemental Budgets
2. Quarterly and Annual Financial Reports
3. Summary of Disbursements and Expenditures
4. Status of procurement contracts and infrastructure projects; and
5. Revenues and sources of funds
6. Published information shall be made accessible to the public via official offices, public postings, and/or the Local Government's website
7. Special reports may be issued for projects funded by grants, loans, or other external financing, in accordance with donor requirements and national regulations

Section 7. CITIZEN ACCESS AND REQUEST PROCEDURE-

1. Any citizen may request fiscal information from the designated office.
2. Requests shall be processed in writing or electronically, specifying the nature of information requested.
3. The designated Office shall respond within a reasonable period, subject to national rules on confidentiality, personal data protection, or sensitive information.
4. Denial of requests shall be provided in writing with valid justification citing applicable laws.

Section 8. RESPONSIBILITIES OF LOCAL OFFICIALS AND OFFICES-

1. Officials shall maintain accurate, complete and up-to-date fiscal records.
2. Officials shall facilitate public access without obstructing or delaying requests.
3. Misrepresentation or concealment of fiscal information shall be subject to administrative, civil, and/or criminal sanctions under applicable law.

Section 9. INTEGRATION WITH OTHER TRANSPARENCY MEASURES-

1. Fiscal transparency shall complement other transparency initiatives, including procurement, budgeting and audit disclosure requirements.
2. Coordination shall be ensured between the Accounting Office, Treasury/Finance Office, Internal Audit Unit and other relevant offices to provide consistent and Comprehensive Fiscal Information.

Section 10. INTERNAL AUDIT AND OVERSIGHT-

1. Internal Audit Units shall periodically review the processes of disclosure and access to fiscal information to ensure compliance and effectiveness.
2. Audit Reports and Recommendations shall be submitted to the Local Chief Executive and Local Legislative Council.

Section 11. PROHIBITED ACTS- The following acts are prohibited:

1. Concealing, falsifying, or misrepresenting fiscal information.
2. Unlawful refusal to provide requested information.
3. Disclosure of confidential, personal, or sensitive information in violation of applicable law.

Section 12. SEPARABILITY CLAUSE- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

Section 13. REPEALING CLAUSE- All Ordinances, Resolutions, or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly, without prejudice to national transparency and audit laws.

Section 14. EFFECTIVITY- This Ordinance shall take effect fifteen (15) days after posting in two (2) conspicuous public places, as required by law.

ENACTED this 3rd day of February, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-16-2026